

DECLARATION OF PLAINTIFF FRANCISCUS DYLAN ROSARIO

I, Franciscus Dylan Rosario, declare as follows:

1. I am the Plaintiff in this action and submit this declaration in support of my **Motion to Strike Defendant's Affirmative Defense of "Unforeseeable Intervening Acts"**.
2. I have personal knowledge of the facts set forth herein and, if called upon to testify, I could and would competently testify to the truth of the matters stated below.
3. Defendant **Subhi Abdelhalim**, in his Answer, has raised the affirmative defense of **"Unforeseeable Intervening Acts"**, yet has failed to provide any specific factual allegations identifying any actual intervening event.
4. Defendant's assertion of this defense is **vague, speculative, and unsupported by facts**, making it legally insufficient under **California Code of Civil Procedure (CCP) § 431.30(b)**.
5. Defendant has failed to allege:
 - (a) What specific act or event constitutes an intervening cause;
 - (b) How such act or event was truly **unforeseeable** and superseded Defendant's negligence;
 - (c) Who was responsible for the alleged intervening act;
 - (d) Any factual or evidentiary support for the defense.
6. Defendant's failure to articulate facts supporting this defense **prejudices my ability to respond** and creates unnecessary litigation disputes.
7. As a result, I request that the Court **strike Defendant's affirmative defense of "Unforeseeable Intervening Acts"** from the Answer as improperly pled and legally insufficient.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.